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STANDARD TERMS AND CONDITIONS OF SALE

Reseller / Distributor Terms

Business draft for partner review — not legal advice. Form id: LUP-TOS Rev A · September 25, 2026.

1. General: The following Standard Terms and Conditions of Sale ("Terms") apply to all quotations, order acknowledgments ("OA"), invoices, and sales made by Level Up Power LLC ("Level Up" or "Seller"). Level Up is a reseller and distributor of power systems and related equipment. These Terms supersede any additional or conflicting terms in Customer's purchase order or other procurement documents, all of which additional and conflicting terms are expressly rejected. Acceptance of Customer's order is expressly conditioned upon Customer's acceptance of these Terms, whether by written acknowledgment, purchase, or payment. Any modification or waiver of these Terms must be in writing and signed by an authorized Level Up representative.

2. Quotations and Orders: Quotations are valid for 30 days unless otherwise stated. Orders are subject to Level Up's acceptance and credit approval. Any change or cancellation after order acceptance will be handled under Section 7 below.

3. Payment Terms: (a) Payment Due. Unless otherwise agreed in writing, payment is due as stated on the applicable quotation, OA, or invoice. Level Up may require milestone payments (for example, 50% upon OA acceptance and 50% prior to shipment) or other schedules set forth on the quote or OA. (b) Method. Payments may be made by ACH or wire transfer in U.S. dollars. Credit card payments, if accepted, are subject to pre-approval and may incur a processing fee to the extent permitted by law. (c) International. Unless otherwise agreed in writing, international orders require payment in full prior to shipment by bank wire or approved Letter of Credit; Customer bears all related bank fees. (d) Late Payments. Past-due amounts accrue interest at 1.5% per month or the maximum rate permitted by law, whichever is less, until paid in full. (e) Credit. Seller may, at any time in its sole discretion, modify payment terms, require advance payment, or suspend performance if Customer's financial condition or payment history does not justify shipment on stated terms. (f) Collection. Customer shall pay all costs of collection, including reasonable attorneys' fees. Seller's rights under this Section are cumulative.

4. Prices, Taxes, and Tariffs: All prices are exclusive of applicable taxes, duties, and tariffs. Customer is responsible for all such amounts unless a valid exemption certificate is on file prior to shipment. If tariffs or other government-imposed costs increase after quotation, Seller may adjust prices or cancel the order.

5. Delivery and Delay: Unless the quotation or OA states otherwise, shipments are FCA factory / manufacturer ship point (Incoterms® 2020). Method and route of shipment are at Seller's discretion unless Customer specifies and pays for a particular method. Delivery dates are estimates given in good faith based on conditions existing at quotation. While Seller will use commercially reasonable efforts to meet quoted or acknowledged dates, time is not of the essence unless expressly agreed in writing. Seller shall not be liable for loss, damage, or expense resulting from delay in shipment or delivery, regardless of cause, unless expressly agreed in writing. Claims for loss or damage in transit must be made by Customer directly to the carrier. Seller will provide reasonable assistance in filing such claims when requested.

6. Title and Risk of Loss: Title and risk of loss transfer to Customer upon Seller's tender of the goods at the FCA point / ship point stated on the OA (or, if none is stated, at the applicable factory or manufacturer ship point).

7. Changes, Cancellations, and Expedites: Customer requests for order changes, postponements, cancellations, or expedited processing must be submitted in writing and are subject to Seller's written approval. Seller may charge cancellation, restocking, and/or expedite fees and may recover manufacturer charges, non-recoverable costs, and resulting damages. If Customer repudiates the contract in whole or in part before shipment, Seller may, in addition to other remedies, identify conforming goods to the contract, complete or cease manufacture or procurement, resell or scrap such goods, and recover resulting damages. If shipment is delayed due to Customer's inability or unwillingness to accept delivery, Customer remains responsible for storage, handling, and related charges. Expedite fees, when approved, provide for accelerated internal handling and priority only and do not include upgraded freight, which remains Customer's responsibility. Seller may suspend performance or terminate orders if Customer is in breach of any obligation owed to Seller.

8. Returns: All sales are final. No goods may be returned without Seller's prior written consent. Approved returns may be subject to restocking fees and must be in original, unused, resalable condition, freight prepaid, and accompanied by Seller's return authorization.

9. Installation and Service: Installation, commissioning, startup, and field services are not included unless expressly stated in writing on the quotation or OA. Any such services may be negotiated separately at then-current rates. If goods are installed by a person other than Seller, installation must follow the manufacturer's and Seller's written instructions. Except as expressly provided in writing, Seller is not liable for any use or non-use of advice or recommendations.

10. Product and Specification Changes: Manufacturer design, specification, or process changes may be passed through to Customer. Seller may furnish functionally equivalent goods or components when needed to meet lead time or availability, with notice to Customer when reasonably practicable. Such changes shall not expand Seller's warranty obligations beyond those applicable at the time of original sale. Seller has no obligation to incorporate later changes into goods previously manufactured or delivered.

11. Limited Warranty: As a reseller/distributor, Level Up passes through to Customer the applicable manufacturer warranties for goods sold, to the extent transferable and as stated by the manufacturer. Any limited warranty that Level Up itself expressly provides in writing on a quotation or OA (if any) is narrow and applies only to the services or items so identified. Seller's sole obligation, and Customer's exclusive remedy, for any covered defect shall be, at Seller's option, repair or replacement of the defective goods or refund of the purchase price paid to Seller for those goods, after Seller (or the manufacturer) verifies coverage. THIS WARRANTY IS EXCLUSIVE AND IN LIEU OF ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, ALL OF WHICH ARE DISCLAIMED TO THE MAXIMUM EXTENT PERMITTED BY LAW. Seller does not warrant that goods will meet Customer's particular application requirements unless expressly agreed in writing.

12. Force Majeure: Seller is not liable for loss, damage, detention, or delay due to causes beyond its reasonable control, including, without limitation, acts of God, acts of Customer, acts of civil or military authority, priorities, fires, strikes, floods, epidemics, quarantine restrictions, war, riot, delays in transportation, government restrictions or embargoes, supply-chain disruptions, or difficulties obtaining necessary labor, materials, manufacturing facilities, or manufacturer allocations.

13. Limitation of Liability: TO THE EXTENT PERMITTED BY APPLICABLE LAW, SELLER'S SOLE LIABILITY FOR A BREACH OF ITS OBLIGATIONS TO CUSTOMER IS TO REPAIR, REPLACE, REPERFORM, OR PROVIDE A REFUND, AT SELLER'S OPTION. FURTHER, TO THE EXTENT PERMITTED BY APPLICABLE LAW, CUSTOMER AGREES THAT SELLER SHALL NOT BE LIABLE FOR ANY SPECIAL, INCIDENTAL, EXEMPLARY, INDIRECT, OR CONSEQUENTIAL DAMAGES INCLUDING BUT NOT LIMITED TO LOSS OF REVENUES OR PROFIT, PROPERTY DAMAGE, OR LOSS OF GOODWILL, EVEN IF SELLER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH POTENTIAL LOSS OR DAMAGE, ARISING OUT OF OR RESULTING FROM THE SALE, INSTALLATION, OR USE OF ANY PRODUCT OR SERVICE OR FOR ANY OTHER REASON. SELLER'S TOTAL CUMULATIVE LIABILITY IN CONNECTION WITH ANY OCCURRENCE OR SERIES OF OCCURRENCES, WHETHER IN CONTRACT OR TORT OR OTHERWISE, WILL NOT EXCEED THE AMOUNTS ACTUALLY RECEIVED BY SELLER FOR THE SPECIFIC GOODS OR SERVICES FROM WHICH THE LIABILITY ARISES.

14. Governing Law and Venue: These Terms and all contracts for the purchase of Seller's goods or services are deemed made in the State of Texas and shall be governed by the laws of the State of Texas, without regard to conflicts-of-law rules. The parties agree that the exclusive jurisdiction and venue for any legal action arising out of or relating to these Terms or any sale hereunder shall be the state or federal courts located in Harris County, Texas, and each party irrevocably consents to such courts. Notwithstanding the foregoing, if judgments of such courts are not binding on and enforceable against Customer, Seller may alternatively assert claims against Customer by arbitration administered by the International Chamber of Commerce in Houston, Texas (or London, England if Houston is unavailable), and Customer agrees to be bound thereby.

15. Export Compliance: Customer agrees to comply fully with all applicable laws and regulations concerning the purchase, sale, transfer, and use of goods, including U.S. export controls and sanctions. Customer is solely responsible for obtaining any required import, export, or re-export licenses, permits, or other governmental authorizations. Seller has no obligation to secure or maintain any such licenses or permits on behalf of Customer.

16. Release for Manufacture / Drawing Approval: Orders that require approval of engineering drawings, specifications, or other documentation before "release for manufacture," or that include a "hold for approval" condition, are deemed special orders. Receipt of such approvals or written confirmation of release constitutes authorization for manufacture or procurement. By providing such approval or release, Customer acknowledges that the equipment, as specified, meets its technical requirements and accepts responsibility for all costs incurred for processing, engineering, manufacture, and procurement. Upon release for manufacture, the order becomes fully billable at the quoted selling price for all items covered by the purchase order and any approved addenda.